

STATE OF NEW YORK

4903--A

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sens. HARCKHAM, ADDABBO, CLEARE, FERNANDEZ, MAYER, MYRIE, RIVERA, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring a physician who treats a minor patient with a medical condition to provide certain educational information to such patient's parents or guardians

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Shepherd
2 Patterson notification act of 2026".

3 § 2. The public health law is amended by adding a new section 2500-n
4 to read as follows:

5 § 2500-n. Information on education accommodations for a minor patient
6 with a medical condition that may cause a disability. 1. On or before
7 July first, two thousand twenty-six, the department, in consultation
8 with the department of education, shall develop an informational elec-
9 tronic notice and resource for practitioners to provide to the parents
10 or guardians of a patient under the age of eighteen with a medical
11 condition that may create a disability for the patient as defined under
12 section five hundred four of the federal rehabilitation act of nineteen
13 hundred seventy-three. Such electronic notice shall indicate that such
14 minor may be entitled to a free and appropriate public education as
15 defined under section five hundred four of the federal rehabilitation
16 act of nineteen hundred seventy-three, as amended, which may include
17 accommodations for the delivery of programs and services for eligible
18 students with disabilities. Such written information shall also state
19 that the parent, guardian, or person in a parental relationship with the
20 patient should contact their school to discuss possible accommodations

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD09303-02-6

1 for the patient and the benefits of sharing potentially life-saving
2 emergency medical information with school personnel.

3 2. The department shall ensure that such electronic notice is made
4 available through a secure electronic portal and is provided to the
5 parent or guardian at the time of patient consent for treatment or diag-
6 nosis. Proof of access or acknowledgment through the portal shall satis-
7 fy the requirements of this section.

8 3. A practitioner may provide the parent and/or guardian of the
9 patient with the informational electronic notice and resource developed
10 pursuant to this section.

11 4. The electronic portal may include links to relevant state and
12 federal resources, including but not limited to special education
13 services, early intervention programs, procedural safeguards, and parent
14 advocacy supports.

15 5. The department shall ensure that the electronic notice is accessi-
16 ble, including the provision of language access services and accommo-
17 dations for individuals with disabilities, consistent with state and
18 federal accessibility standards.

19 6. For purposes of this section, "practitioner" means a health care
20 professional licensed, certified, or otherwise authorized to practice
21 under the education law, acting within the scope of practice.

22 § 3. This act shall take effect on the one hundred twentieth day after
23 it shall have become a law. Effective immediately, the addition, amend-
24 ment and/or repeal of any rule or regulation necessary for the implemen-
25 tation of this act on its effective date are authorized to be made and
26 completed on or before such effective date.